

Intellectual Property Rights (IPR) – Detailed Notes

Introduction

In today's knowledge-based economy, ideas, inventions, creative works, brand names, designs, and technological innovations are valuable business assets. Intellectual Property Rights (IPRs) provide legal protection to these creations and encourage people and organisations to innovate.

For example:

- A new machine → Patent
 - A novel logo → Trademark
 - A book or software → Copyright
 - A unique product design → Industrial Design
 - Darjeeling Tea → Geographical Indication (GI)
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1. Meaning of Intellectual Property

Intellectual Property (IP) refers to creations of the human mind that have economic or commercial value and are protected by law.

These creations may include:

- Inventions
- Literary and artistic works
- Designs
- Symbols
- Names
- Logos
- Images
- Technological innovations

Definition

Intellectual Property is the legal ownership of creations of the human intellect, allowing creators or owners to control the use of their creations for a specified period.

2. Meaning of Intellectual Property Rights (IPRs)

Intellectual Property Rights (IPRs) are legal rights granted to individuals or organisations over their intellectual creations.

These rights allow the owner to:

- **Use the intellectual property**
- **Prevent unauthorised use**
- **License it to others**
- **Sell or transfer it**
- **Earn income from it**

Example

If an entrepreneur develops a new technology and obtains a patent, competitors cannot legally use the patented invention without permission, subject to the scope and term of the patent.

3. Concept of Intellectual Property

The concept of IP is based on the principle that people who create something valuable through their knowledge, skill, creativity, and innovation should receive legal protection and economic benefits from their creations.

The intellectual property system attempts to balance two interests:

Creator's Interest

The creator receives:

- **Recognition**
- **Ownership**
- **Economic benefits**
- **Legal protection**

Society's Interest

Society benefits from:

- **Innovation**
- **New technologies**

- Knowledge creation
 - Cultural development
 - Economic growth
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4. Nature and Characteristics of Intellectual Property

1. Intangible in Nature

Intellectual property is not a physical object.

For example:

- An invention is intangible.
 - The patent protecting it is a legal right.
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2. Creation of Human Intellect

IP results from:

- Creativity
 - Innovation
 - Knowledge
 - Skill
 - Research
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3. Legal Protection

IP is protected through laws and regulations.

4. Exclusive Rights

The owner generally has exclusive rights to use or authorise others to use the IP, subject to the specific type of IP and applicable law.

5. Transferable

IP rights can often be:

- Sold
 - Assigned
 - Licensed
 - Transferred
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6. Commercial Value

IP can generate income through:

- Licensing
 - Royalties
 - Sale
 - Franchising
 - Commercial exploitation
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7. Territorial Nature

Many IP rights are territorial. Protection generally applies in the country or jurisdiction where protection is obtained.

8. Time-Bound

Some IP rights are protected for a limited period.

For example, patents have a limited term.

Copyright protection also has a statutory term that depends on the type of work and applicable law.

9. Encourages Innovation

IP protection encourages people and businesses to invest in research and creativity.

10. Can Be an Organisational Asset

IP can become a valuable business asset and contribute to competitive advantage.

5. Origin and Development of Intellectual Property

The concept of intellectual property developed gradually as societies recognised the importance of protecting inventions, creative works, and commercial identities.

Early Development

Historically, inventors and creators did not have comprehensive legal protection. However, governments gradually introduced laws to protect inventions and creative works.

Development of Patent Systems

Modern patent systems developed to encourage inventors to disclose their inventions in exchange for limited exclusive rights.

Development of Copyright

Copyright developed to protect authors and creators from unauthorised copying of their works.

Development of Trademarks

Trademarks evolved from the use of marks by producers and merchants to identify the source or quality of goods.

International Development

As international trade expanded, the need for international IP protection increased.

Important developments include:

- Paris Convention, 1883
 - Berne Convention, 1886
 - Establishment of WIPO, 1967
 - TRIPS Agreement, 1994
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6. Kinds of Intellectual Property

The major types of intellectual property include:

1. Patents
2. Copyright
3. Trademarks
4. Industrial Designs
5. Geographical Indications
6. Trade Secrets
7. Semiconductor Integrated Circuit Layout Designs
8. Plant Varieties and Farmers' Rights

7. Intellectual Property System in India

India has developed a comprehensive legal and institutional framework for protecting intellectual property.

The major areas include:

IP Type	Major Indian Law
Patents	Patents Act, 1970
Copyright	Copyright Act, 1957
Trademarks	Trade Marks Act, 1999
Industrial Designs	Designs Act, 2000
Geographical Indications	GI of Goods (Registration and Protection) Act, 1999
Semiconductor Layout Designs	Semiconductor Integrated Circuits Layout-Design Act, 2000
Plant Varieties	Protection of Plant Varieties and Farmers' Rights Act, 2001

Major Institutions

1. Office of the Controller General of Patents, Designs and Trade Marks (CGPDTM)

Administers important IP rights such as:

- Patents
- Designs

- Trademarks
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2. Copyright Office

Administers copyright registration-related functions.

3. GI Registry

Deals with registration of geographical indications.

4. Intellectual Property Appellate and Judicial Mechanisms

IP disputes may be handled through courts and other applicable legal mechanisms.

8. Invention and Creativity

Invention

An invention is a new and useful technical solution to a problem.

Example:

A new machine that reduces manufacturing time.

Creativity

Creativity refers to the ability to produce original ideas, expressions, designs, or artistic works.

Example:

- Writing a novel
 - Creating a painting
 - Designing a logo
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Difference Between Invention and Creativity

Invention

Usually involves technical innovation

Creativity

Usually involves original expression or ideas

Invention	Creativity
May be protected by patent	May be protected by copyright or design rights
Solves a technical problem	Creates an original work or expression
Example: New machine	Example: Original artwork

9. Importance of Intellectual Property Rights

1. Encourages Innovation

IP protection encourages investment in research and development.

2. Protects Creators

It prevents unauthorised use of protected creations.

3. Provides Economic Benefits

IP can generate:

- **Royalties**
 - **Licensing income**
 - **Business value**
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4. Promotes Competition

Businesses can compete through innovation and differentiation.

5. Attracts Investment

Strong IP protection can make businesses more attractive to investors.

6. Supports Economic Growth

Innovation and creativity contribute to:

- **Employment**

- Industry development
 - Technology advancement
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7. Creates Competitive Advantage

Strong brands, patents, and designs can differentiate a business.

8. Promotes Knowledge Sharing

Patent systems encourage disclosure of inventions in exchange for legal protection.

10. Protection of Intellectual Property Rights

IP can be protected through:

1. Registration

Register eligible IP rights with appropriate authorities.

2. Legal Agreements

Use:

- Non-disclosure agreements
- Licensing agreements
- Assignment agreements

3. Monitoring

Monitor markets for infringement.

4. Legal Enforcement

Take legal action against unauthorised use.

5. Internal Controls

Businesses should control access to confidential information.

PART A – PATENTS

11. Meaning of Patent

A patent is a legal right granted to an inventor for an invention that meets the requirements of patent law.

In exchange, the inventor discloses the invention, and the patent provides exclusive rights for a limited period.

Patentable Invention

Generally, an invention must satisfy requirements such as:

- 1. Novelty**
- 2. Inventive step / non-obviousness**
- 3. Industrial applicability**

It must also be patentable subject matter under applicable law.

Example

Suppose a company develops a new technology that significantly improves battery efficiency.

If the invention meets legal requirements, the company may apply for a patent.

Importance of Patents

- Protects inventions**
 - Encourages R&D**
 - Prevents unauthorised commercial use**
 - Creates licensing opportunities**
 - Attracts investors**
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Patent Term in India

Under the Indian Patents Act, the general patent term is 20 years from the date of filing, subject to applicable legal requirements.

12. Patent Application Procedure in India

A simplified process is:

Invention



Prior Art Search



Prepare Patent Application



File Application



Publication



Request for Examination



Examination



Response to Objections



Grant or Refusal

PART B – COPYRIGHT

13. Meaning of Copyright

Copyright is a legal right given to creators of original literary, artistic, musical, dramatic, and certain other works.

It also applies to certain works such as:

- **Computer programs**
 - **Cinematographic films**
 - **Sound recordings**
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Examples

Copyright can protect:

- **Books**
 - **Songs**
 - **Paintings**
 - **Films**
 - **Photographs**
 - **Software code**
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Rights of Copyright Owner

Depending on the work and applicable law, copyright includes rights relating to:

- **Reproduction**
 - **Distribution**
 - **Communication to the public**
 - **Adaptation**
 - **Translation**
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Importance

- **Protects creators**
 - **Prevents unauthorised copying**
 - **Encourages creativity**
 - **Provides economic benefits**
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14. Copyright Registration

Copyright protection generally arises automatically when an original work is created, subject to applicable law.

Registration is not generally a prerequisite for copyright protection in India, but registration can serve as useful evidence of ownership and details of the work in disputes.

PART C – TRADEMARKS

15. Meaning of Trademark

A trademark is a sign capable of distinguishing the goods or services of one enterprise from those of others.

It may include:

- **Brand names**
 - **Logos**
 - **Words**
 - **Symbols**
 - **Certain other distinctive marks**
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Examples

- **Company name**
 - **Product brand**
 - **Logo**
 - **Symbol**
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Functions of Trademark

1. Identifies Source

Helps customers identify the source of goods or services.

2. Builds Brand Identity

Creates recognition in the market.

3. Protects Goodwill

Protects the reputation associated with a brand.

4. Prevents Confusion

Helps prevent misleadingly similar branding.

Trademark Registration Process

Search



Application



Examination



Publication / Advertisement



Opposition Period



Registration

PART D – TRIPS

16. TRIPS Agreement

TRIPS stands for:

Trade-Related Aspects of Intellectual Property Rights

It is an international agreement administered by the World Trade Organization (WTO).

The agreement establishes minimum standards for IP protection among WTO members.

Areas Covered by TRIPS

TRIPS covers:

- **Copyright**
- **Trademarks**
- **Geographical indications**
- **Industrial designs**
- **Patents**
- **Layout designs of integrated circuits**
- **Trade secrets**

Objectives

- Establish minimum IP protection standards
 - Promote international trade
 - Provide enforcement standards
 - Reduce trade-related IP disputes
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17. TRIMS

TRIMS stands for:

Trade-Related Investment Measures

TRIMS is a WTO agreement concerning certain investment measures related to trade in goods.

It seeks to prevent investment measures that violate principles such as:

- National treatment
 - Elimination of quantitative restrictions
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Examples of Measures Addressed

Certain requirements such as:

- Local content requirements
- Trade balancing requirements

may be inconsistent with TRIMS obligations.

Difference Between TRIPS and TRIMS

TRIPS

Trade-Related Aspects of Intellectual Property Rights

Deals with intellectual property

TRIMS

Trade-Related Investment Measures

Deals with investment measures related to trade in goods

TRIPS

Covers patents, copyright, trademarks, etc.

Focuses on IP protection

TRIMS

Addresses certain investment requirements

Focuses on trade-related investment measures

PART E – INDUSTRIAL DESIGNS

18. Meaning of Industrial Design

An industrial design protects the visual or aesthetic features of a product.

It may relate to:

- **Shape**
 - **Configuration**
 - **Pattern**
 - **Ornamentation**
 - **Composition of lines or colours**
-

Example

The unique appearance of:

- **A mobile phone**
- **A chair**
- **A bottle**
- **A vehicle**

may be protected as an industrial design if it meets legal requirements.

Importance

- **Protects product appearance**
- **Prevents unauthorised copying**
- **Encourages product innovation**
- **Creates market differentiation**

PART F – INTEGRATED CIRCUITS

19. Integrated Circuit (IC)

An Integrated Circuit is an electronic circuit in which components are integrated onto a semiconductor material.

The design or layout of an IC can have significant commercial value.

Layout-Design Protection

The layout-design of semiconductor integrated circuits can be protected under specific law.

In India, protection is provided under:

Semiconductor Integrated Circuits Layout-Design Act, 2000

Importance

Protection encourages:

- **Semiconductor innovation**
 - **Electronics development**
 - **Research and development**
 - **Investment in chip design**
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PART G – GEOGRAPHICAL INDICATIONS

20. Meaning of Geographical Indication

A Geographical Indication (GI) is a sign used on products that have a specific geographical origin and possess qualities, reputation, or characteristics essentially attributable to that location.

Examples from India

- **Darjeeling Tea**
- **Kanchipuram Silk**

- **Mysore Silk**
 - **Pochampally Ikat**
 - **Banarasi Saree**
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Importance of GI

1. Protects Regional Products

Protects products associated with a specific geographical area.

2. Prevents Misuse

Prevents unauthorised use of the geographical name.

3. Supports Producers

Helps local producers obtain market recognition.

4. Promotes Rural Development

Can improve income opportunities for local communities.

5. Preserves Traditional Knowledge

Supports traditional skills and production methods.

PART H – WIPO

21. Establishment of WIPO

WIPO stands for:

World Intellectual Property Organization

WIPO is a specialised agency of the United Nations that promotes the protection of intellectual property worldwide.

WIPO was established by the WIPO Convention, which was signed in 1967, and the organisation began operations in 1970.

Its headquarters is in Geneva, Switzerland.

Objectives of WIPO

- 1. Promote IP protection worldwide.**
- 2. Encourage international cooperation.**

3. Support IP systems in member countries.
 4. Provide international IP services.
 5. Assist developing countries.
 6. Promote innovation and creativity.
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22. Major Activities of WIPO

WIPO works in areas such as:

- Patents
 - Trademarks
 - Copyright
 - Industrial designs
 - Geographical indications
 - International IP filing systems
 - IP policy and cooperation
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PART I – APPLICATION AND PROCEDURES

The application procedure depends on the type of intellectual property.

23. Patent Application Procedure

Step 1: Identify the Invention

Determine what has been invented.

Step 2: Conduct Prior Art Search

Search existing patents and technical literature.

Step 3: Prepare Application

Prepare:

- Description
- Claims
- Drawings, where required

- **Abstract**

Step 4: File Application

Submit the application to the appropriate patent office.

Step 5: Publication

The application is published according to applicable rules.

Step 6: Request Examination

The applicant requests examination within the prescribed time.

Step 7: Examination

The patent office examines the application.

Step 8: Respond to Objections

The applicant may need to respond to examination reports.

Step 9: Grant

If all requirements are satisfied, the patent is granted.

24. Trademark Application Procedure

Step 1

Select the trademark.

Step 2

Conduct a trademark search.

Step 3

File the application.

Step 4

Examination by the Trademark Registry.

Step 5

Respond to objections, if any.

Step 6

Publication in the Trade Marks Journal.

Step 7

Opposition period.

Step 8

Registration if there is no successful opposition.

25. Copyright Application Procedure

A simplified process is:

Create Original Work



Prepare Application



Submit Application



Examination / Objection Process



Registration Entry, where applicable

Copyright protection itself generally exists from creation of an original work, while registration is an optional formal process that may provide evidentiary benefits.

26. Industrial Design Registration Procedure

Create Design



Check Novelty



Prepare Application



File Application



Examination



Publication / Registration

27. GI Registration Procedure

A GI application is generally made by an association of persons, producers, organisation, or authority representing the interests of the producers.

The broad process includes:

Identify Product and Geographical Link



Prepare Application



File with GI Registry



Examination



Publication



Opposition Period



Registration

28. Comparison of Major IPRs

Type	Protects	Example
Patent	New inventions	New machine
Copyright	Original creative works	Book, software
Trademark	Brand identity	Brand name, logo
Industrial Design	Product's visual appearance	Product shape

Type	Protects	Example
GI	Products linked to a geographical origin	Darjeeling Tea
IC Layout Design	Layout of semiconductor circuits	Chip layout
Trade Secret	Confidential business information	Secret formula

29. IPR and Entrepreneurship

IPRs are particularly important for entrepreneurs and startups.

Innovation

Entrepreneurs can protect new inventions.

Brand Building

Trademarks protect brand identity.

Creative Assets

Copyright protects creative content and software.

Investment

Strong IP portfolios can attract investors.

Licensing

Entrepreneurs can earn revenue by licensing IP.

Competitive Advantage

IP can make it difficult for competitors to copy innovations.

30. IPR Protection Cycle

The complete IP management process can be remembered as:

Create



Identify IP



Protect



Register / Apply



Monitor



Commercialise



License / Sell



Enforce Rights

31. Quick Revision Table

Topic	Key Point
Intellectual Property	Creations of the human mind having economic value
IPR	Legal rights protecting intellectual creations
Patent	Protects qualifying inventions
Copyright	Protects original creative works
Trademark	Protects distinctive brand identifiers
Industrial Design	Protects visual features of products
GI	Protects products linked to a specific geographical origin
IC Layout Design	Protects semiconductor circuit layout designs
TRIPS	WTO agreement on minimum IP protection standards
TRIMS	WTO agreement on trade-related investment measures
WIPO	UN specialised agency for intellectual property
Patent Term	Generally 20 years from filing in India
Indian Patent Law	Patents Act, 1970

Topic	Key Point
Indian Copyright Law	Copyright Act, 1957
Indian Trademark Law	Trade Marks Act, 1999
Industrial Design Law	Designs Act, 2000
GI Law	GI of Goods (Registration and Protection) Act, 1999
IC Layout Law	Semiconductor Integrated Circuits Layout-Design Act, 2000
